Signé
PAR
Em

N° 43

COLLECTION · LIFE SITUATIONS

Buying as a Couple

Common-law partners, undivided co-ownership and agreements — protect yourselves

2026 EDITION

READ BEFORE YOU BEGIN

Important notice

This guide is provided for informational and educational purposes only. It offers general information about real estate in Quebec and does not constitute personalized real estate, legal, tax or financial advice. As every real estate situation is different, it is recommended that you consult the appropriate professionals before making any decision regarding a real estate transaction.

COLLECTION LIFE SITUATIONS · GUIDE NO. 43

Buying as a Couple

Common-law partners, undivided co-ownership and agreements — protect yourselves

---

Buying a property as a couple is a beautiful step — and an important legal decision. Especially for common-law partners, whose rights differ from those of married couples, it's essential to structure the purchase well to protect yourselves.

This guide covers the ways to hold the property together, the importance of an agreement, and the protections to plan for.

Informational content, not legal advice: consult a notary. Each chapter ends with a lined “My notes” page.

Buying as a couple is a beautiful step — and an important legal decision, especially for common-law partners, whose rights differ from those of married couples. This guide covers the ways to hold together, the importance of an agreement and the protections to plan for.

Informational content, not legal advice: consult a notary.

CHAPTER

Married vs common-law partners

> *Understanding why status changes everything.*

In Quebec, married or civil-union couples benefit from protection rules (**family patrimony**) that govern the family residence.

As for **common-law partners**, they do *not* have these automatic protections: in the event of a separation or death, their rights depend mainly on what is **written** (title, agreement, will).

Many common-law partners don't know this reality — and discover it at the worst moment.

In Quebec, married and civil-union couples benefit from the protections of family patrimony; common-law partners don't — their rights depend mainly on the written record (title, agreement, will). Many don't know it and discover it at the worst moment: for an unmarried couple, everything comes down to the documents.

> EMILIE'S TIP
>
> *“We've been together for 15 years, it's like a marriage.” No: in Quebec, a common-law union doesn't create the same rights. For an unmarried couple, everything comes down to the documents.*

CHAPTER

How to hold the property

> *Choosing the ownership structure.*

The way you register the property on title is a **structuring** decision:

- In **undivided ownership**, in equal shares (50/50) or according to each person's contribution.
- The **title** must clearly reflect who owns what.

If only one partner is on title, the other can end up with no right to the property — even after years and many payments. Make this choice with full knowledge.

The way you register the property on title is structuring: in undivided ownership, in equal shares or according to each person's contribution. If only one partner is on title, the other can end up with no right — even after years of payments. If you pay half, make sure you're on title.

> EMILIE'S TIP
>
> *If you pay half the mortgage, make sure you're on title. Contributing financially without appearing on title is the classic scenario where you lose everything at separation.*

CHAPTER

The agreement between partners

> *Planning for the unexpected in writing.*

An agreement (often an **undivided co-ownership agreement** or a cohabitation agreement) sets out in advance what would otherwise be settled in court:

- The **allocation of shares**.
- Who pays what (mortgage, taxes, maintenance).
- What happens in the event of a **separation** (buyout, sale, deadlines).
- What happens in the event of **death** (with the will).

It's a bit like insurance: you hope never to use it, but it avoids painful conflicts.

An agreement (undivided co-ownership or cohabitation) sets out in advance what would otherwise be settled in court: the allocation of shares, who pays what, and what happens in the event of a separation or death. Draft it when all is well, not in the middle of a breakup.

> EMILIE'S TIP
>
> *Draft the agreement WHEN all is well, not when things are going badly. Calmly discussing "what if one day…" at the purchase is infinitely simpler than in the middle of a breakup.*

CHAPTER

Protecting the survivor: will and insurance

> *Thinking about death too, not just a breakup.*

For common-law partners especially, the death of a partner can leave the other in a precarious situation if nothing is planned.

- **Will**: without it, a common-law partner doesn't inherit automatically.
- **Life insurance**: can let the survivor buy out the share or repay the mortgage.
- **A clause in the agreement**: coordinate with the will.

These tools, put in place together, form a real safety net.

Think about death too: without a will, a common-law partner doesn't inherit automatically. Life insurance can let the survivor buy out the share or repay the mortgage, avoiding a fire sale. Coordinate the agreement, the will and the insurance.

> EMILIE'S TIP
>
> *Life insurance that covers the mortgage balance keeps the survivor from having to sell in a hurry. It's often one of the best peace-of-mind purchases a couple can make.*

CHAPTER

Buying as a couple, step by step

> *Structuring the purchase calmly.*

For a well-put-together joint purchase, follow this logical order:

1. **Clarify** your status and your real protections.
2. Decide on the **allocation of shares**.
3. Have an **agreement** drafted by a notary.
4. Update your **wills** accordingly.
5. Register the property on **title** in accordance with the agreement.

A little rigour at the start protects your couple — and your wealth — for a long time.

For a well-put-together joint purchase: clarify your status, decide on the allocation, have an agreement drafted by a notary, update your wills, and register the property on title in accordance with the agreement. It's not a lack of trust, it's mutual respect.

> EMILIE'S TIP
>
> *Treat buying as a couple like a small joint project: a written agreement, clear roles, up-to-date documents. It's not a lack of trust, it's mutual respect.*

IN PRACTICE

Action plan

> *Your next steps, concretely.*

This week

1. Clarify our status and our real protections.
2. Decide on the allocation of shares.

Within 30 days

1. Have an agreement drafted by a notary.
2. Update our wills accordingly.

Next

1. Register the property on title in accordance with our agreement.

To structure it well

1. Clarify our status and decide on the allocation of shares.
2. Have an agreement drafted and update our wills.

REFERENCES

Resources & glossary

- Family patrimony: protections for married/civil-union couples.
- Common-law partners: without automatic protections; the written record prevails.
- Undivided ownership: holding by several people, in equal shares or by contribution.
- Undivided co-ownership agreement: an agreement setting shares, payments and exits.
- Title of ownership: must reflect the couple's real agreement.

- Family patrimony: protections for married/civil-union couples.
- Common-law partners: without automatic protections; the written record prevails.
- Undivided ownership: holding by several people, in equal shares or by contribution.
- Undivided co-ownership agreement: an agreement setting shares, payments and exits.
- Title of ownership: must reflect the couple's real agreement.

GOING FURTHER

Quiz — test your knowledge

1. Married couples benefit from:

A) No protection

B) The protections of family patrimony

C) Reduced taxes

D) A free mortgage

2. Common-law partners:

A) Have the same protections as married couples

B) Have no automatic protections; the written record prevails

C) Cannot buy

D) Inherit automatically

3. If only one partner is on title:

A) The other is protected automatically

B) The other can end up with no right to the property

C) The city decides

D) Nothing changes

4. In undivided ownership, the shares can be:

A) Always mandatorily 50/50

B) Equal or according to each person's contribution

C) Set by the city

D) Non-existent

5. The agreement between partners sets out:

A) The colour of the walls

B) Shares, payments, separation and death

C) The municipal taxes

D) The interest rate

6. The best time to draft the agreement is:

A) In the middle of a breakup

B) When all is well, at the purchase

C) Never

D) After ten years

7. Without a will, a common-law partner:

A) Inherits automatically

B) Doesn't inherit automatically

C) Pays less tax

D) Becomes married

8. Life insurance can let the survivor:

A) Avoid the notary

B) Buy out the share or repay the mortgage

C) Double their taxes

D) Nothing

9. The title of ownership must:

A) Ignore the agreement

B) Reflect the couple's real agreement

C) Be in the bank's name

D) Stay empty

10. Structuring a joint purchase is above all:

A) A lack of trust

B) Mutual respect and foresight

C) A waste of time

D) Illegal

Answer key

1. B — Family patrimony (ch. 1).

2. B — The written record prevails (ch. 1).

3. B — The title is structuring (ch. 2).

4. B — Equal or by contribution (ch. 2).

5. B — It settles the scenarios (ch. 3).

6. B — Anticipate (ch. 3).

7. B — The will is essential (ch. 4).

8. B — A safety net (ch. 4).

9. B — Consistency between title and agreement (ch. 2 and 5).

10. B — Foresight and respect (ch. 5).

Signé

PAR

Em

Thank you for reading. May this guide help you decide with confidence, with all the information in hand.